

In re MATTER OF SILVEIRA

21PR8357 (Consolidated with 22PR8424, 22PR8425, 22PR8452)

MOTION TO QUASH BUSINESS RECORD SUBPOENAS AND MOTION TO SUBSTITUTE PERSONAL REPRESENTATIVE

In this consolidated probate case, the descendants of Carolyn and David (Sr.) Silveira find themselves fighting over three parcels of land and roughly \$500,000 in allegedly missing assets. Before the Court this day is a motion to quash subpoenas for personal and financial records, which are similar to the subpoenas previously issued (and quashed) in 21PR8424 (see Minute Order dtd 10/28/22). That order occurred prior to consolidation, and was based largely on the fact that 21PR8424 only involved an alleged oral promise to Manuel, not the alleged financial irregularities at issue in the other related actions. Also before the Court this day is a motion to substitute a new personal representative.

Motion to Quash Business Record Subpoenas

An allegation has been made that, before her passing, Carolyn “stole” from her husband David Sr. Since Carolyn’s estate plan differed from David Sr’s, there remains a question about whether Carolyn did improperly take assets, and if so, whether those assets should be redirected to those holding beneficial interests in David Sr’s estate.

On 11/10/22, Audrey Petricevich – in her capacity as David Sr’s personal representative – caused to be issued the following business record subpoenas:

- To Wells Fargo Bank, N.A., all records pertaining to Carolyn “and/or” David Jr.
- To Wells Fargo Advisors Financial Network, all records pertaining to Carolyn “and/or” David Jr.
- To Pacific Cascade Federal Credit Union, all records pertaining to Carolyn “and/or” David Jr.
- To Transamerica Corporation, all financial records pertaining to Carolyn “and/or” David Jr.
- To Bank of Stockton, all records pertaining to Carolyn
- To Bank of Stockton, all records pertaining to Carolyn “and/or” Francille
- To Charles Schwab & Co, all records pertaining to Carolyn “and/or” Francille
- To Comenity Capital Bank, all records – including records for World Financial Network National Bank and affiliates – pertaining to Carolyn “and/or” Francille

David Jr. and Francille have moved to quash the above-referenced subpoenas on the singular ground that they invade their personal right to privacy. Subsequent thereto, the

custodian of records for Wells Fargo and Transamerica Corp reportedly identified defects with the subpoenas, requiring those to be re-issued. Thus, for present purposes, the only subpoenas presently at issue, and subject to quashing, are the ones for Pacific Cascade, Bank of Stockton, Charles Schwab and Comenity. However, the same legal and factual predicate applies to all eight of the subpoenas so this will serve in effect as an advisory opinion regarding the re-issued subpoenas not presently before the Court.

Audrey's request to strike the motion in its entirety for failing to include a complete caption (CRC 3.350(d)) or sufficient evidence (CRC 3.1113(b)) is DENIED without prejudice. The technical omission of a caption is immaterial for present purposes, and the absence of meaningful briefing/support is best addressed alongside the merits of the motion. In fact, since reaching the merits is of paramount importance here, this Court is also willing overlooking the moving parties' failure to include a meet and confer declaration (see CCP §2025.410(c)) or separate statement (CRC 3.1345(a)(5)).

The basic purpose of discovery is to take the "game" element out of trial preparation by enabling parties to obtain the evidence necessary to evaluate and resolve their dispute beforehand. (*Emerson Electric Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1107; *Reales Investment, LLC v. Johnson* (2020) 55 Cal.App.5th 463, 473-474.) Audrey is concerned about accounts which came to light in the related dissolution action. Although Audrey has a presumptive right to inquire about any matter which – based on reason, logic and common sense – might (1) be admissible, (2) lead to admissible evidence, or (3) reasonably assist that party in evaluating the case, preparing for trial and/or facilitating resolution (see *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557), there is a counterbalance to this broad right to discovery in the Constitutional right to privacy. (See Calif. Const. Art. 1, §1; and *County of Los Angeles v. Los Angeles County Employee Relations Commission* (2013) 56 Cal.4th 905, 927; *Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1039.) Although David Jr. and Francille have the ultimate burden of establishing that in fact their privacy rights have been implicated (see *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255), privacy is presumed when banking records are sought. Thus, the burden shifts to Audrey to show a particularized need for the records, to wit: the information is directly relevant to a party's cause of action, essential to a fair determination of the action, AND not available through alternative, less-intrusive means. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 859.) Analysis should include "the purpose of the information sought, the effect that disclosure will have on the parties and on the trial, the nature of the objections urged by the party resisting disclosure, and ability of the court to make an alternative order which may grant partial disclosure, disclosure in another form, or disclosure only in the event that the party seeking the information undertakes certain specified burdens which appear just under the circumstances." (*Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652, 658; *Fortunato v. Superior Court* (2003) 114 Cal.App.4th 475, 480.)

Taking into consideration all of these factors, including Audrey's representation that the accounts sought all belong to Carolyn (not David or Francille), the moving parties have failed to demonstrate a genuine privacy concern. More importantly, Audrey has demonstrated a substantial and bona fide need for the information. Although counsel proposes a protective order as a work-around – there is an easier work-around, and that is to strike from the subpoena references to David Jr. and Francille. Since the contention is that these accounts belonged to Carolyn, and are evidence of her wrongdoing, the inclusion of “and/or David or Francille” is unnecessary – at least on this first round. The subpoenas, as amended herein, are proper. Motion to quash GRANTED as to the striking of “and/or David or Francille” references, but otherwise DENIED.

The Clerk shall provide notice of this Ruling to the parties forthwith. Audrey to prepare formal Orders pursuant to Rule of Court 3.1312 in conformity with these rulings.

Motion to Substitute Party

The pending action (21PR8357) was commenced by the acting trustee (David Sr) and joined by his three children in their individual capacities as trust beneficiaries. Since the commencement thereof, David Sr has passed away, and one of those beneficiary – Audrey – has stepped into David Sr's shoes as a personal representative. However, as a technical matter, since David's passing nobody has substituted in as acting successor trustee, which is necessary for the continued prosecution of this trust petition.

Pursuant to CCP §377.31, “on motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative.” All that is required is that the person seeking to substitute in “execute and file an affidavit or a declaration” stating all the details necessary to acquaint the court with the need for substitution. Although the declaration filed does not comport with the requirements set forth in CCP §377.32, this Court takes judicial notice of David Sr's death and Audrey's appointment as personal representative. Since there is no opposition, and no plea in abatement, the failure to comply with CCP §377.32 has been waived. (See *Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 228; *Aghaian v. Minassian* (2021) 64 Cal.App.5th 603, 614.)

Motion to substitute in in representative capacity as acting successor trustee is GRANTED.

The Clerk shall provide notice of this Ruling to the parties forthwith. Audrey to prepare formal Orders pursuant to Rule of Court 3.1312 in conformity with these rulings.